

Calendar Line 4

Case Name: *Rita Gutierrez vs General Motors LLC*

Case No.: 23CV425715

I. INTRODUCTION

On March 28, 2025, Plaintiff in this Song Beverly action (SBA) filed this Motion for Attorney's Fees and Costs, requesting: (1) lodestar fees of \$82,290.00; (2) a multiplier of 1.5-2.0, yielding an additional \$41,145.00-\$82,290.00; and (3) costs of \$8,223.65; for a total sought award between \$123,435.00 and \$164,580.00 in fees, plus \$8,223.65 in costs. (Pl.'s Mot. for Att'y Fees & Costs ("Mot.") 3, 12 (filed Mar. 28, 2025).)

On June 30, 2025, this Court awarded Plaintiff \$5,708.93 in costs. Now, Plaintiff requests the following hourly rates and hours:

Time-keeper	Title	Hourly Rate	Hours	Lodestar	Litigation
Mark O'Connor, Esq.	Senior Partner	\$ 750	21.3 h	\$ 15,975	• Technical case analysis & strategy (review GM warranty & TSB docs, 3-6-24) • Lead settlement negotiations & CCP § 998 revisions (11-20-24 meeting; 12-13-24 offer edits)
Matthew T. Goethals, Esq	Lead Counsel	\$ 500	88.0 h	\$ 44,000	• Draft & revise discovery responses (3-3-24 ROGs/RFAs/RFPs) • Prepare four motions to compel & joint statements (10-17-24) • Assemble attorney-fee motion & billing audit (3-27-25)
Shawna M. Melton, Esq.	Sr. Associate	\$ 650	1.3 h	\$ 845	• Prepare for & attend Case-Mgmt. Conf. (10-15-24)
Luis Aguirre, Esq.	Associate (former)	\$ 475	5.2 h	\$ 2,470	• Draft meet-and-confer letters re deficient discovery (3-5-24 & 3-6-24)
Kristin Arndt	Paralegal	\$ 200	56.3 h	\$ 11,260	• Draft & file discovery/pleading papers (12-20-23 discovery sets) • Finalize joint statement & e-file (10-17-24) • Compile fee exhibits & invoice spreadsheet (3-28-25)

Time-keeper	Title	Hourly Rate	Hours	Lodestar	Litigation
David Womack	Paralegal	\$ 200	9.2 h	\$ 1,840	• Client comms & damages spreadsheets (10-5-23 repair-order work; 12-16-24 updates) • Fee-motion client logistics (3-26-25 emails)
Amy Hajduk, Esq.	Contract Attorney	\$ 500	11.8 h	\$ 5,900	• Peer-edit & research four discovery MTC packets (4-13-24–4-14-24)

(Pl.’s Mot. for Att’y Fees & Costs at 3, 12; Ex. 16-17.)

II. LEGAL STANDARD

A prevailing buyer has the burden of showing that the fees incurred were allowable, reasonably necessary to the conduct of the litigation, and were reasonable in amount. (*Pulliam v. HNL Automotive Inc.* (2021) 60 Cal.App.5th 396, 405.) The reasonable hourly rate is that prevailing in the community for similar work. (*Id.*) A reasonable fee can be measured by the marketplace by analyzing the quality and necessity of services and then comparing that cost with what other attorneys with similar experience and ability charge for the same services. (*Shaffer v. Superior Court* (1995) 33 Cal.App.4th 993, 1002.)

III. DISCUSSION

A. Hourly Rate

The hourly rates requested by Plaintiff range from \$200 to \$750 per hour.

In support, Plaintiff cites eleven Santa Clara County and Southern California lemon-law fee orders approving partner rates between \$600 and \$950 for attorneys who have specialized in lemon-law actions for over fifteen years. (O’Connor Decl. ¶ 18 & Exhs. 5-14). Plaintiff argues that these rates are reasonable based on counsel’s experience in consumer warranty litigation and prior court appearances of similar SBA cases. Plaintiff contends that Mr. O’Connor has extensive trial experience and obtained jury verdicts for both consumer plaintiffs and auto manufacturers. Partner Mark O’Connor declares that he has been practicing law for over 34 years, specializing in consumer litigation and product liability. Mr. O’Connor is “not aware of any other counsel in California who has such experience[.]” (O’Connor Decl. ¶ 17.)

In opposition, Defendant contends Plaintiff provided only self-serving declarations without independent evidence to justify rates for attorneys Shawna Melton (\$650/hr), Matthew Goethals (\$500/hr), and paralegals (\$200/hr). Defendant requests a 10% blanket reduction (\$2,882.67) and proposes the following hourly rates:

Personnel	Role	Hours	Original Rate (\$/hr)	GM's Proposed Reduced Rate (\$/hr)
Shawna M. Melton	Attorney	1.3	\$650	\$500
Matthew Goethals	Attorney	88.0	\$500	\$400
Kristin Arndt & David Womack	Paralegals	65.5	\$200	\$150
Flat 10% Blanket Reduction	—	—	—	\$2,882.67

After reviewing counsel's credentials, prior court approvals, comparable hourly rates awarded in similar cases, this Court's experience, and the work described for each individual, the Court finds the requested hourly rates reasonable and consistent with prior court rulings, except for Mark O'Connor. The Court adjusts Mr. O'Connor's rate from \$750/hr to \$650/hr to align with prevailing Santa Clara County standards. The other requested rates are approved as reasonable. The Court rejects Defendant's claim that a 10% blanket reduction should be applied. The Court finds this argument neither appropriate nor supported by the facts here.

a. The Number of Hours

Plaintiff requests compensation for 193.1 billed hours. (Pl.'s Mem. P. & A. 1-3; Ex. 16, Invoice No. 129.) Defendant argues the requested hours are excessive, duplicative, and improperly block-billed, and proposes specific reductions. The Court agrees in part. Attorney hours are compensable if reasonable and necessary. (*Ketchum v. Moses*, 24 Cal.4th 1122, 1132 (2001); *Serrano v. Unruh*, 32 Cal.3d 621, 639 (1982).) As explained in this Court's June 30, 2025 Costs Order, Plaintiff's Motions for Further Responses were unnecessary and inadequately supported. (See Order Re: Costs, *Gutierrez v. Gen. Motors LLC*, No. 23CV425715, at 2-4.) Thus, time corresponding to those disallowed costs will not warrant an award for attorneys' fees either.

i. Fully Excluded Hours

Billing Category	Hours Excluded	Reasoning
Motions to Compel Further Responses from GM	22.1 hrs.	Insufficient meet-and-confer efforts and absence of the need for court decision making. (See Order Re: Costs at 2.)
General Attorney Education	4.3 hrs.	Compensation for routine education is unnecessary given Counsel's extensive experience in Lemon Law matters. (<i>Id.</i> at 4.)
Subtotal	26.4 hrs.	—

For other fees challenged by Defendant, the Court finds complete exclusion unwarranted. However, the Court reduces these hours to reflect reasonable attorney effort:

ii. Partially Reduced Hours

Billing Category	Hours Billed	Hours Reduced	Hours Allowed	Reasoning
Excessive/Over-Redacted Entries	7.1 hrs.	3.55 hrs.	3.55 hrs.	Entries partially indecipherable.
Initial Case Analysis	12.6 hrs.	4.0 hrs.	8.6 hrs.	Excessive initial investigation.
Templated Complaint	3.8 hrs.	0.6 hrs.	3.2 hrs.	Routine work.
Templated Discovery Responses	8.4 hrs.	2.0 hrs.	6.4 hrs.	Excessive given “templated” format.
Templated Discovery Requests	7.2 hrs.	2.0 hrs.	5.2 hrs.	Excessive given “templated” format.
Templated Meet-and-Confer Correspondence	10.1 hrs.	1.0 hrs.	9.1 hrs.	Routine correspondence.
General Case Management	2.5 hrs.	0 hrs.	2.5 hrs.	Reasonable and necessary.
Non-party Dealership Depositions	8.7 hrs.	0 hrs.	8.7 hrs.	Allowed related deposition costs.
Templated Motion to Compel PMQ Deposition	4.5 hrs.	2.0 hrs.	2.5 hrs.	Reduction for duplication.
Motions to Compel (Gilroy Chevrolet)	14.2 hrs.	4.0 hrs.	10.2 hrs.	Partial reduction for duplicative effort.
Settlement-Related Work	3.9 hrs.	1.95 hrs.	1.95 hrs.	Partial reduction for routine tasks.
Auditing Billing Records	0.9 hrs.	0 hrs.	0.9 hrs.	Reasonable and necessary.
“Anticipated” Fee-Motion Work	11.3 hrs.	5.65 hrs.	5.65 hrs.	Reduction for speculative hours.
Subtotal	95.2 hrs.	26.75 hrs.	68.45 hrs.	—

b. Plaintiff's Request for Multiplier

Plaintiff requests a multiplier of 1.5-2.0. (Pl.’s Mot. at 12.) A multiplier is justified when supported by novelty, difficulty, results achieved, contingent risk, or counsel’s skill. (*Robertson*, 144 Cal.App.4th at 819-21.) This action involved routine claims, which were resolved promptly through

settlement. No novel issues were raised, nor was there unusual contingency risk. Accordingly, the Court DENIES Plaintiff's multiplier request. (*Ketchum v. Moses*, 24 Cal. 4th 1122, 1132-33 (2001).)

B. Attorneys' Fees Award

Timekeeper	Rate/hr	Hours Allowed	Lodestar Amount
Mark O'Connor, Esq.	\$650	15.44	\$10,036.00
Matthew Goethals, Esq.	\$500	63.78	\$31,890.00
Shawna Melton, Esq.	\$650	0.94	\$611.00
Luis Aguirre, Esq.	\$475	3.77	\$1,790.75
Kristin Arndt, Paralegal	\$200	40.80	\$8,160.00
David Womack, Paralegal	\$200	6.67	\$1,334.00
Amy Hajduk, Esq.	\$500	8.55	\$4,275.00
Total Lodestar Award	—	139.95	\$58,096.75

IV. Conclusion

Plaintiff is awarded \$58,096.75 in attorney's fees based on adjusted hourly rates and reasonable hours. Plaintiff's multiplier request is DENIED.

The Court will prepare the final order.

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